

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

August 26, 2013

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Mr. Luna, Dr. Rinne, Mr. Shanor, Mr. Valdez and Ms. Williams. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Dr. Rinne moved to suspend the rules to change the order of the agenda to bring forward agenda item #16 (Resolution determining conditions for annexation exist for Swan Ranch II) for action prior to agenda item #8 (Ordinance regarding annexation for Swan Ranch II), seconded by Mr. Valdez. Motion carried. Voting "yes" -- all members of the governing body.

Mr. Allen moved to suspend the rules to change the order of the agenda to bring forward agenda item #22 (Resolution authorizing an amended and restated Development Agreement for the "Swan Ranch Development Area") for action prior to agenda item #16 (Resolution determining conditions for annexation exist for Swan Ranch II), seconded by Mr. Cook. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown voting "no".

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Brown, and pursuant to support received by Dr. Rinne and Mr. Allen, agenda items #22 and #30(g) were removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Ms. Broyles and Mr. Shanor, agenda item #18 was removed from the Consent Agenda. Upon request by Mr. Allen, and pursuant to support received by Mr. Shanor and Mr. Cook, agenda item #29(b) was removed from the Consent Agenda. Mr. Allen moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on August 12, 2013. Motion (per Consent Agenda) carried.

Mr. Brown declared a conflict of interest (business interest in voucher payable to Ameri-Tech HVAC) and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive public comments associated with determining whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the South Half of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont Annexation (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue). Jim Flesher, Planning Services Department, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Upon inquiry regarding possible extension of Rue Terre, Mr. Flesher clarified no City cost estimate has yet been done regarding an extension of the street. During comments on extension of Rue Terre for future consideration, Rob Geringer, City Engineer, advised engineering staff can work on a cost estimate. Mark Butler, Inberg-Miller Engineering, firm affiliated with proposed development of the property, reviewed cost estimates involving Rue Terre affiliated with the proposed development on the property. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the hearing.

Mayor Kaysen opened a public meeting for the purpose of receiving public comments on the submission of a 5307 Federal Grant to fund transportation services by Cheyenne Transit for Fiscal Years 2013/2014. Joe Dougherty, Transit Director, provided information on the grant request, which is in the amount of \$1,110,189, and reviewed information contained in his memo dated August 26th to City Council. He stated they are requesting more in capital assistance and maintenance in order to purchase 3 replacement buses, and reviewed the need for federal operating assistance, and money utilized from other funds and grants for program services. Upon inquiry, Mr. Dougherty provided information on the weekday and Saturday hours for fixed route bus services, noting it was hard to find the perfect mix of weekend hours based upon available funding. Shawn Ajdari questioned whether alternate fuel types have been considered for vehicle operational cost savings and related his observation of a transit program in operation in another city and state that uses natural gas. Mr. Dougherty advised compressed natural gas works better at sea level vs. high altitudes, explaining some problems involve limited vehicle fuel storage capacity and a longer time in which to fill tanks, and stated he would check on the program Mr. Ajdari mentioned. There being no further comments or input and purpose of the meeting having been met, Mayor Kaysen closed the public meeting.

Mayor Kaysen opened a public hearing to receive public comments regarding the intent of the City of Cheyenne to submit an application for funding to the Wyoming Business Council's Business Ready Community, Downtown Development Grant Program to construct an elevated walkway over Pioneer Avenue to the Jack R. Spiker downtown parking garage to provide access to parking for a national hotel franchise in Cheyenne's downtown. Cindy Schneider, Grants Manager, advised the grant and loan request is in conjunction with a proposed Hilton hotel to be built near Pioneer Ave. and 17th St. (across the street west of the parking structure) and that the hotel project will facilitate downtown economic development. She stated the grant request amount would be \$562,500 with a \$187,500 loan and there would be no out of pocket cost to the City. She explained the grant and loan will fund construction of the walkway that will be owned by the City and leased to the hotel. Anja Bendel, Director of Business Development, Cheyenne

LEADS, reviewed public, sales tax and economic development benefits involved in the proposed hotel project, noting hotel plans call for approximately 122 rooms and that the hotel would be responsible for walkway operational and maintenance expenses during the term of the walkway lease. She advised the walkway is envisioned to extend between the parking garage and hotel lobby/meeting rooms area and can be used by others. James Perot McNeil commented on his family history involving ownership and leasing of property. Lea Bain, Larry Atwell and Shawn Ajdari spoke in support of the application for funding, noting benefits of economic development at no cost to taxpayers; investment in downtown; lack of downtown parking; potential for future extension of access to the garage to benefit other downtown areas, and suggestion that a master plan be conducted. Upon inquiry, Brian Weinmaster, affiliated with the proposed hotel project, advised of Hilton standards relative to the number of parking spaces that are required (preliminary estimate is 120 spaces). Dick O’Gara, Board President, Downtown Development Authority, advised informal support for the project has been expressed through DDA Committees and that he anticipated formal support would be provided at the next Board meeting. Upon inquiry regarding any potential future costs involving improvements to the garage, Mayor Kaysen advised nothing in detail has yet been discussed in that regard. Also in response to inquiry, Mayor Kaysen provided information on a past proposal for a skywalk connection from the parking structure to another building that involved a different project. Randy Bruins, Cheyenne LEADS, commented that the past skywalk proposal involved different grant program rules and a different type purpose, and stated the proposed City application for grant and loan funding through the Wyoming Business Council’s program is the first step in the process, and that it must still be vetted by the Business Council and State Loan and Investment Boards and involves more steps throughout the application review process. Upon inquiry, Mr. Bruins advised the loan is part of the grant process and that the availability of parking spaces through the elevated walkway connectivity is a critical component to the hotel being able to be built under franchise requirements. Rob Uehran, Spirit Hospitality, verified it is a Hilton franchise requirement to have the connectivity for parking and explained elements involved in a franchise relationship. Upon inquiry whether there was any constitutionality issue with the City investing in this type of funding and loan request, Dan White, City Attorney, advised research had been conducted and the City would be acting within its statutory authority. There being no further comments or input and purpose of the hearing having been met, Mayor Kaysen closed the public hearing.

RESOLUTION - Authorizing the Mayor and City Clerk of the City of Cheyenne to enter into an amended and restated Development Agreement with Granite Peak Development, LP, Clear Creek Land Company, LLC, and Swan Ranch, LLC to define the rights and obligations of the parties relating to the annexation and future economic development of the land generally described as the “Swan Ranch Development Area”. Mr. Brown moved to adopt, seconded by Mr. Valdez. Upon inquiry, Matt Ashby, Planning Services Director, advised the agreement provides for an option by the City to purchase land for a fire station but if the pump station is paid for from grant funds, then the developer would be willing to donate the land. He stated he was not aware of any funding yet set aside to build and staff the station. Comment was made regarding any interest in the “downtown hole” by the developer of this property, and it was advised the current developer was perhaps looking for more acreage with industrial-type uses. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”. (#5520)

RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive) (Postponed from 08/12/13). Reporting for Public Services Committee, Dr. Rinne moved to adopt, seconded by Mr. Allen. Questions followed regarding emergency response fire services for the chemical plant located in the area; Rolling Hills residential subdivision, Walmart Distribution Center and NCAR. In response, Chief James Martin, Fire and Rescue Department, stated the areas are all served by Laramie County Fire Districts and that the City responds only if they are called upon for mutual aid assistance. Upon inquiry regarding anticipated costs associated with building a new fire station, Chief Martin advised the approximate cost may be 4-5 million dollars. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Brown and Ms. Williams voting "no". (#5515)

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in portions of Sections 14, 15, 22, 23, 27, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming, to be known as the Swan Ranch II Annexation (located northwest of the intersection of Clear Creek Parkway and Tundra Drive) (Postponed from 08/12/13). Dr. Rinne moved to approve on third and final reading, seconded by Mr. Shanor. Discussion topics included: Annexation providing City growth and benefits; vision for growth, and concern with reduced property and sales tax revenue base affiliated with industrial uses vs retail or residential uses. Motion carried. Voting "yes" -- all members of the governing body. (#3994)

ORDINANCE - Amending various sections of Title 8, Health and Safety, Chapter 8.44, Solid Waste, of the Cheyenne City Code, pertaining to the general provisions of the Solid Waste Code. Providing comments on the ordinance topic were: Phil Herrick, downtown business property owner; Joan Ghani, General Manager, Frontier Mall and Frontier Square; Dick O'Gara, Board President, Downtown Development Authority; Lea Bain, business consultant; Sam Galeotos, downtown property owner; and Jeff Tray, Aspen Real Estate, owner of business property involving tenants. Topics discussed included: Current rate structure and financial effect on small business property owners and tenants; negative effect of proposed ordinance on owners of larger properties involving multiple business tenants housed in one commercial building; responsibility of property owners for retail tenants' solid waste charges; rate inequities; proposed ordinance benefitting small businesses; current rate structure being unfavorable to those trying to bring businesses to the downtown area; rates for those operating businesses out of their homes vs. commercial districts; waste amount and containers vs. dumpsters; uniform enforcement, and support for recycling, composting and "pay as you throw" programs. Reporting for Finance Committee, Mr. Brown advised there was no recommendation from the Committee on the item. Mr. Valdez moved to approve on third and final reading, seconded by Mr. Allen. Discussion topics included: Rate inequities; effect of proposed ordinance on mall and strip-mall properties; pending independent study of sanitation rate structure, and definition of "building" and wording in current City code. Upon inquiry regarding clarification of current code regarding buildings in which one or more businesses operate, Dan White, City Attorney, read current language of Section 8.44.010 (D) of City code as follows: "It is assumed that each residence and business in the city produces solid waste. Therefore, each residence and business must subscribe to and pay for city solid waste services. An owner(s) may terminate solid waste services if the residence or business is vacant, unused, or there have been changes made which affect the use or occupancy

of the property, by filing a written request with the solid waste division to terminate, suspend, or change services. An affidavit form is available at the transfer station. This form when signed and notarized, will meet this requirement. Adjustments will be made upon receipt of a completed form by the solid waste division. Owner(s) must also notify the solid waste division immediately of any changes to the property after the affidavit is signed. If notification is not made, the solid waste division is authorized, at its discretion, to charge for the entire period back to the change date specified in the original affidavit. Customers bear the burden to ensure correct billing for services provided. Warranted adjustments for past billing errors will be limited to no more than sixty (60) days from customer's notification of the error to the solid waste division." Comments followed on interpretation of proposed ordinance language relative to charges for services for buildings with numerous businesses; concern with ordinance effect pertaining to lost revenue (estimated \$166,000 during current fiscal year; \$325,000 for following year) and options for consideration in recouping lost revenue (ex: rate increases, reduced services); rate structure being a long standing issue, and opportunity to further review/revise ordinance provisions based upon results of the rate study. Mr. Shanor moved to amend Section 2 of the proposed ordinance by striking the words "against the owner(s)" in the 3rd sentence contained in Section 8.44.010 (D), seconded by Mr. Valdez. Speaking in favor of the amendment were: Ms. Ghani, Mr. Herrick, Mr. Galeotos and Ms. Bain. Jim Elias, Public Works Director, expressed concern that the proposed amendment would make the ordinance almost unenforceable for fee collection purposes as it would not be clear who would ultimately be responsible for the bill. Mr. Tray suggested the dumpster could be removed for non-payment. Discussion included comments in support as well as non-support of the proposed amendment and intent of the amendment with regard to fee assessment vs. payment of bill responsibility. Upon inquiry concerning sending a bill "to the building" per other proposed wording in Section D, Mr. White advised Section E of current City code perhaps addresses the matter and read the following wording from existing Section E: "...Charges for the collection of garbage and refuse must be paid by the owner or occupant of every premise(s) from which garbage and refuse is collected." Mr. White further advised that sanitation fees have to be charged against someone -- a person or legal entity who can make payment, not a building. Further comments followed on discretionary authority provided public works staff in determining who to bill, and that the ordinance proposes no change to Section E. Upon request, Mr. White read existing Section E in its entirety as follows: "...Charges for the collection of garbage and refuse must be paid by the owner or occupant of every premise(s) from which garbage and refuse is collected. These charges will be included in water and sewer bills issued by the Board of Public Utilities." Motion to amend carried. Voting "yes" - Mr. Allen, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting "no" -- Mr. Brown Ms. Broyles, Dr. Rinne and Mayor Kaysen. Discussion followed and included the following topics: Ordinance change effect "for a few"; forthcoming overall sanitation rate study results; unknown and potential City budget costs involving fire arbitration and employee salary study relative to loss of sanitation revenue; timing of the ordinance as a current issue to change fee assessments to be based upon a per dumpster and pickup basis and addressing other topics later, and invoicing for services. Upon inquiry, Mr. White advised it is somewhat difficult to predict all of the resulting implications that might occur with respect to the ordinance, and reiterated wording contained in Section E regarding charges for collection, commenting that bills will still be sent to owners or occupants of premises in the City but this is a complicated issue. Comments followed on the effective date of the ordinance (i.e. January 1, 2014); possible ordinance change(s) by the effective date if receipt of the pending solid waste study is completed by the end of the year, and waiting for study results before acting on the proposed ordinance. Upon inquiry by Mayor Kaysen to members of the governing body and there being no objection voiced, Mayor

Kaysen raised a question regarding wording of Section E (current city code) relative to the phrase “owner or occupant” and the scenario of whether the City could collect for sanitation charges from a property owner if a lessee of the property owner, who has responsibility for payment through agreement with the owner, failed to make payment, and requested Mr. White provide a legal interpretation. Mr. White responded that it appears under the ordinance the City could collect from the owner if the occupant, for whatever reason, refused to pay or did not pay. Motion to approve as amended carried. Voting “yes” -- Mr. Allen, Mr. Cook, Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting “no” -- Mr. Brown, Ms. Broyles, Dr. Rinne and Mayor Kaysen. (#3995)

Following a ten minute recess, Mayor Kaysen reconvened the meeting at 8:15 pm.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from MUB Mixed-Use Business Emphasis to P Public for a portion of Lot 1, Block 2, and ½ of vacated Vosler Place, Plaza Del Range, Cheyenne, Wyoming (located at the northwest corner of the intersection of Sheridan Street and Ridge Road). Dr. Rinne moved to approve on second reading, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 Agricultural and Rural Residential (County) to MUR Mixed-Use Residential Emphasis for Snyder Plaza, Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road). Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Comments followed regarding potential retail business activities at the site; neighborhood notification requirements of the proposed zone change; traffic and safety concerns; zone change requirements, and whether a site plan, in conjunction with a related preliminary plat item on the meeting agenda, had been submitted. In response to inquiry during comments, Brett Walker, Development Office, advised a site plan had not yet been submitted and isn’t normally received as part of a zone change procedure, and Matt Ashby, Planning Services Director, clarified land annexed into the City sometimes retains its county zone type until the property is developed. Shawn Ajdari, owner and developer of the property, verified the requested zone change is to MUR which has specific requirements on what types of development can be placed upon the property. Brad Emmons, AVI Engineering, agent for the applicant, reviewed development types, including applicable architectural design standards, allowed within a MUR zone and pursuant to the Unified Development Code (UDC), and stated a full architectural design will not begin until the zone type is confirmed. Continuing discussion included the following topics: Whether the zone change type was appropriate for the area; notification radius requirements; traffic study and traffic volume in the vicinity; uses by right for a MUR zone pursuant to administrative or conditional use review; letter received from area resident, and proposed use of property. During discussion, Mr. Ashby provided information on the process utilized in reviewing uses by right for a MUR zone pursuant to provisions of Article 2 of the UDC; Mr. Emmons advised the developer is looking at providing small neighborhood-type business services, and Mr. Walker confirmed an error with a map coordinate connected with the preliminary plat as well as a corrected legal description will be provided through the final plat process. Motion carried.

Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”.

ORDINANCE - Pursuant to Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from A-1 and MU (County) to CB Community Business for a parcel of land situated in a portion of the South Half of Section 20, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming, to be known as Lots 1 and 2, Block 1, Terre Pont (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue). Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” -- all members of the governing body.

ORDINANCE - Amending, creating, deleting and re-creating various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to General Provisions, and including Adoption of the International Building Code and other Related Codes, 2012 Edition; The National Electrical Code, 2011 Edition; and the International Energy Conservation Code, 2009 Edition. Joe Patterson, Joe Patterson Construction, advised he has served on several Building Code Review Committees and commented on the 2009 International Energy Conservation Code (IECC), indicating that version was more consistent with current practices and provides more options for builders. Dick O’Gara, Board President, Downtown Development Authority, stated the Board has not formally endorsed the proposed codes, citing DDA’s interest in codes benefitting historic and existing downtown buildings, and requested the ordinance be postponed to allow the Board time to receive additional information. Speaking in favor of the ordinance were Randy Byers, local architect and member of Code Review Committee; Brian Casey, owner, Mister.B’s Heating and Cooling, and member of Code Review Committee, and Delmar Stone. Their comments included support for the IECC as a means to protect the safety and welfare of residents by setting a minimum standard and helping reduce energy consumption; Code Review Committee membership composition and its role in reviewing and recommending proposed codes; benefits and components of the proposed 2009 IECC edition vs. 2012 edition; need to update the codes, and opposition to postponement. Dr. Rinne moved to approve on second reading, seconded by Mr. Cook. Dr. Rinne moved to divide the question to allow for separate discussion and vote on the International Energy Conservation Code, 2009 Edition, seconded by Ms. Williams. Motion carried. Voting “yes” -- Mr. Allen, Ms. Broyles, Mr. Cook, Mr. Luna, Mr. Valdez and Ms. Williams. Voting “no” -- Mr. Brown, Dr. Rinne, Mr. Shanor and Mayor Kaysen. Following comments on the IECC, Mr. Shanor moved to postpone consideration of the 2009 IECC to September 9, 2013, seconded by Mr. Luna. Discussion followed on the purpose of postponement; possibility of holding a City Council work session to receive further staff information, and whether postponement was needed as the ordinance was on 2nd, not 3rd, reading. Motion to postpone failed. Voting “yes” -- Mr. Luna, Mr. Shanor, Mr. Valdez and Ms. Williams. Voting “no” -- Mr. Allen, Mr. Brown, Ms. Broyles, Mr. Cook, Dr. Rinne, and Mayor Kaysen. Main motion, as divided, to approve the IECC, 2009 Edition, carried. Voting “yes” -- all members of the governing body with the exception of Mr. Luna and Mr. Shanor voting “no”. Comments followed in support of scheduling a Council work session on the ordinance topic. Main motion, as divided, to approve the remaining codes enumerated in the ordinance carried. Voting “yes” -- all members of the governing body with the exception of Mr. Shanor voting “no”.

ORDINANCE - Annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont annexation (located northeast of the intersection of Frontier Mall Drive and Prairie Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

ORDINANCE - Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code, amending the landscaping requirements under Unified Development Code Sections 6.3.4a, 6.3.4b, and 6.3.7e -- referred to Public Services Committee (sponsors -- Mr. Allen, Mr. Cook, Mr. Shanor).

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Teton Business Park, a replat of Lots 1 thru 4, inclusive, Block One, Classic Subdivision, Cheyenne, Wyoming (located at the northeast corner of the intersection of Westland and Old Happy Jack Roads) (postponed from 08/12/13). Dr. Rinne moved to adopt, seconded by Mr. Allen. Dr. Rinne moved to postpone to September 9, 2013, seconded by Ms. Broyles. It was advised postponement is at the developer's request to allow for review of soil testing results. Upon inquiry, Brett Walker, Development Office, clarified the testing is for structural reasons. Motion to postpone carried. Voting "yes" -- all members of the governing body.

RESOLUTION - Authorizing the Mayor and the City Clerk to sign a Final Plat for Swan Ranch Rail Park, Eighth Filing, a Replat of Swan Ranch Rail Park, Sixth Filing, and portions of Sections 14, 15, 22, 23 and 27, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located northwest of the intersection of Tundra and Clear Creek Parkway) (postponed from Aug. 12, 2013). Scott Sutherland, Granite Peak Development, expressed appreciation to City staff and Council members for their efforts and support involving the development area. Dr. Rinne moved to adopt, seconded by Mr. Shanor. Motion carried. Voting "yes" -- all members of the governing body. (#5516)

[CA] RESOLUTION - Re-appropriating the Fiscal Year 2014 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5517)

[CA] RESOLUTION - Authorizing the Mayor and the City Clerk to sign a County Final Plat for Deerhaven Subdivision, 2nd Filing, a replat of Lot 1, Block 2, Deerhaven Subdivision, Laramie County, Wyoming (located at the southeast corner of the intersection of Montalto Drive and E. Fox Farm Road). Motion (per Consent Agenda) carried. (#5518)

RESOLUTION - Authorizing the filing of an application with the Federal Transit Administration, and Operating Administration of the United States Department of Transportation, for Federal Transportation Assistance Authorized by Title 49, United States Code, Section 5307. Mr. Brown moved to adopt, seconded by Mr. Luna. Motion carried. Voting "yes" -- all members of the governing body. (#5519)

RESOLUTION - Authorizing submission of an Application to the Wyoming Business Council, Business Ready Community Grant and Loan Program for funding through the Downtown Development Grant and Loan Program for an elevated walkway. Dale Steenbergen,

Cheyenne Chamber of Commerce, spoke in support of the project, noting potential economic development for the downtown corridor. Mr. Brown moved to adopt, seconded by Mr. Valdez. Comment followed in support of the walkway project. Motion carried. Voting “yes” -- all members of the governing body. (#5521)

[CA] RESOLUTION - Authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to assist in financing the Logan Avenue Sanitary Sewer Rehabilitation Project - Nationway to East Pershing Boulevard. Motion (per Consent Agenda) carried. (#5522)

[CA] RESOLUTION - Determining that conditions for annexation required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of Section 20, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, to be known as the Terre Pont annexation (located northeast of the intersection of Frontier Mall Drive and Prairie Avenue) -- referred to Public Services Committee (sponsor -- Mr. Allen).

[CA] RESOLUTION - Approving Sanitary Sewer Service, by Outside User Sanitary Sewer Services Agreement, for Scott Johnson, Tract 4, Mountain View Homes, Laramie County, Wyoming -- referred to Finance Committee (sponsor -- Mr. Valdez).

[CA] RESOLUTION - Authorizing submittal of an application to the Wyoming State Loan and Investment Board for a \$1 Million loan from the State Revolving fund for funding the Recycle Water System Extension Project and authorizing the Mayor, City Clerk and the Director of the Board of Public Utilities to sign all loan documents -- referred to Finance Committee (sponsor -- Mr. Brown).

RESOLUTION - Endorsing a study of the costs of new development for future policy decisions regarding relative public and private responsibilities for capital investments necessitated by development – referred to Finance Committee (sponsors – Dr. Rinne and Mayor Kaysen). Mr. Brown advised the item was discussed under other items for the agenda at the August 19th Finance Committee meeting, and provisions of Title 2 of City Code had been met. Mr. Brown moved to adopt, seconded by Ms. Broyles. Matt Ashby, Planning Services Director, noted the study concept had been associated with provisions attached to a recent development action and that members of the governing body had expressed that the study would be more appropriately addressed independently rather than attaching it to one specific development project. He noted the resolution will involve issuance of a request for proposals (RFP) to select a consultant to provide information related to community growth issues. Questions were raised on the possibility of forming a committee to assist in overseeing the study’s progress, study funding source, and whether a provision could be contained in the contract for services to provide for a timely reporting process that includes City Council members. In response, Mr. Ashby advised this type of study generally could involve a steering committee to help guide the project and that the Council and executive administration could determine committee composition. Upon inquiry, Lois Huff, City Treasurer, advised once there was a contract or RFP done to determine the amount needed, options for funding the study could be presented. Further comment followed on purpose of the study and support for study components to be “all inclusive” relative to all areas involving development costs, including the Board of Public

Utilities. Motion carried. Voting “yes” -- all member of the governing body with the exception of Ms. Williams voting “no”. (#5523)

Preliminary Plat for Snyder Plaza, a replat of a portion of Blocks 80 and 81, formerly known as Interior Heights Addition, now vacated, being a portion of the NE¼ of Section 7, T.13N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of and adjacent to Snyder Avenue, north of W. Allison Road). Dr. Rinne moved to acknowledge receipt with staff recommendation #1, seconded by Mr. Shanor. Upon inquiry concerning traffic impact if property development results in a higher traffic volume than anticipated, Brad Emmons, AVI, agent for the applicant, advised with the preparation of the final plat the traffic study would be reviewed and if there were certain proposed uses that may have a higher value affecting the previous study, the study would have to be updated. He provided information on elements included in the traffic study that had been prepared, which anticipated a higher use, and levels of service for vicinity roadways. In response to comments on traffic volume; safety concerns; request for further review of the traffic study area, especially on West Jefferson and Snyder Avenues, and access points, Mr. Emmons indicated he would further review the area; stated South High and Johnson Junior High Schools were calculated as part of the study, and provided information on access and ingress/egress locations. Comment of concern followed on potential business types that may locate on the property, access, traffic flow, and safety. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Williams voting “no”.

Preliminary Plat for Terre Pont, a portion of the South Half of Section 20, T.14N., R.66W., 6th P.M., Laramie County, Wyoming (located at the northeast corner of the intersection of Frontier Mall Drive and Prairie Avenue). Dr. Rinne moved to acknowledge receipt, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body.

[CA] Lease Agreement between City of Cheyenne, Parks and Recreation Department, and the Wyoming Department of Environmental Quality for air monitoring/quality in the North Cheyenne Community Park (revenue to City). Motion (per Consent Agenda) carried. (#6048)

[CA] Agreement between the City of Cheyenne and Stride Learning Center to provide cooperative transit services (revenue to City). Motion (per Consent Agenda) carried. (#6049)

[CA] Contract between the City of Cheyenne, Youth Alternatives, and Laramie County Community Partnership, Inc., for academic and enrichment activities for at-risk school-age youth at Johnson Junior High School (21st Century Community Learning Centers Cohort Eight Grant funds). Motion (per Consent Agenda) carried. (#6050)

[CA] Agreement between the City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming, for juvenile probation services. Motion (per Consent Agenda) carried. (#6051)

Lease Agreement between City of Cheyenne, Information Technology Division, and Xerox by Xerox Agent XESI for a high volume production black and white copier. Mr. Brown moved to approve, seconded by Mr. Luna. Mr. Brown moved to postpone to September 9, 2013, seconded by Ms. Broyles. It was advised postponement is at staff's request to allow time to receive an additional addendum to the contract. Motion to postpone carried. Voting “yes” -- all

members of the governing body.

[CA] Consideration of FAA Grant #3-56-0005-49 between the City of Cheyenne, County of Laramie, and the Cheyenne Regional Airport Board in an amount not to exceed \$1,000,000.00 for the Rehabilitation of Runways 9/27 and 13/31 (rubber removal and paint), Rehabilitation of taxiways (paint), and the Rehabilitation of the lighting control system. Motion (per Consent Agenda) carried. (#6052)

Agreement between Owner and Architect, Standard Form of Architect's Services, and Exhibit A (AIA Documents B102-2007 and B201-2007) between the City of Cheyenne and Pappas & Pappas Architects, P.C., for design and construction contract administration services for the new Cheyenne Public Safety Center, 17th and Pioneer, Cheyenne, Wyoming. Mr. Brown moved to approve in the amount of \$1,700,000.00, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Dr. Rinne. Dan White, City Attorney, reviewed modifications contained in the substitute, noting these were minor changes made for clarification and for some provisions to be more in line with City processes. Motion to amend by substitute carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#6053)

Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization, and A.V.I. p.c., for Division Avenue Corridor/Wallick Road Preliminary Design Plan (Metropolitan Planning Organization funds). Mr. Brown reported there was no recommendation on the item from Finance Committee. Mr. Brown moved to approve in an amount not to exceed \$59,857.33, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (#6054)

[CA] Consideration of FAA Grant #3-56-0005-50 between the City of Cheyenne, County of Laramie, and the Cheyenne Regional Airport Board in an amount not to exceed \$300,000.00 for the creation of a Sustainable Management Plan -- referred to Finance Committee.

[CA] Amendment No. 1 to Memorandum of Understanding (Contract No. 5991) to increase the payment amount between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City -- referred to Finance Committee.

[CA] Consideration of Bid #R-4-14 for furnishing and installing miscellaneous police car equipment for the City of Cheyenne, Police Department, from L.A.W.S. of Englewood, Colorado (2011 - 2014 1% Sales Tax, State Land and Investment Board). Motion (per Consent Agenda) carried (amount not to exceed \$86,443.14).

[CA] Consideration of Bid #M-3-14 for a contract between the City of Cheyenne, 1% Construction Division, and JTL Group Inc., d/b/a Knife River, Cheyenne, Wyoming, for the Campstool Road Overlay Project (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$1,203,089.20). (#6055)

[CA] Consideration of Bid #R-3-14 for furnishing bulk ice control product to the City of

Cheyenne, Public Works Department (2011 - 2014 1% Sales Tax). Motion (per Consent Agenda) carried (accept bid from Desert Mountain Corp, Riverton, WY; \$116.38/ton)

[CA] Consideration of Bid #M-1-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Caylor & Genz Earthmovers, Inc., Torrington, Wyoming, for the Lake Minnehaha Remediation Plan, Phase I Project (State & Local Grants). Motion (per Consent Agenda) carried (amount not to exceed \$983,874.39). (#6056)

[CA] Consideration of Bid #M-2-14 for a contract between the City of Cheyenne, Parks & Recreation Department, and Reiman Corporation and Subsidiary, Cheyenne, Wyoming, for the Renovation and Expansion of the Cheyenne Botanic Gardens Phase I - Roads Project (1% Specific Purpose Sales & Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$345,127.85). (#6057)

[CA] Consideration to purchase 10 Motorola APX6500 mobile radios for the Cheyenne Police Department from Absolute Solutions, Cheyenne, Wyoming (Homeland Security funds). Motion (per Consent Agenda) carried (amount not to exceed \$39,662.50).

Announcement was made of the Appointment of Matt Pope to the Board of Public Utilities, to be confirmed September 9, 2013.

Announcement was made that due to the Labor Day holiday on Monday, September 2, 2013, regularly scheduled City Council Committee Meetings will instead be held in the Municipal Building, Room 122, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, September 3, 2013 at 11:00 a.m. and Public Services Committee will meet Wednesday, September 4, 2013 at Noon.

There being no further business to come before the governing body, the meeting was officially adjourned at 9:36 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
September 9, 2013